

2. 9:00 AM CASE NUMBER: C22-00901

CASE NAME: SALEHOMOUM VS. BAHRAMI-DAGHIGH

*FURTHER CASE MANAGEMENT CONFERENCE

FILED BY:

TENTATIVE RULING:

PARTIES TO APPEAR.

3. 9:00 AM CASE NUMBER: C22-02313

CASE NAME: LAURIE NOE VS. GENERAL MOTORS, LLC

*HEARING ON MOTION IN RE: TO DISMISS

FILED BY: GENERAL MOTORS, LLC

TENTATIVE RULING:

Before the Court is a motion by defendant General Motors, LLC to dismiss the action. For the reasons set forth, the motion is **denied**.

Background

Plaintiff Laurie Noe filed her complaint initiating this action on October 28, 2022. She filed her operative second amended complaint ("2AC") on July 31, 2023.

Plaintiff alleges she leased a 2019 Chevy Bolt electric vehicle, vehicle identification number ("VIN") 1G1FZ6S00K4113497 (the "Vehicle") manufactured and distributed by defendant General Motors, LLC ("GM") which had a "Battery Defect" more fully described in the operative second amended complaint ("2AC"). (2AC ¶¶ 6, 9, 23-29 [model years 2017 through 2022 affected by the Battery Defect].) She initiated this action on October 28, 2022. Plaintiff's 2AC filed in July 2023 alleges five causes of action: the first four causes action alleging claims under the Song-Beverly Consumer Warranty Act, Civil Code section 1790, *et seq.* ("Song-Beverly Act"), and a fifth cause of action for fraudulent inducement - concealment.

GM moves to dismiss the action on the ground that Noe is a member of a class in which a class action settlement was approved in the United States District Court for the Eastern District of Michigan ("Michigan District Court"), Case No. 2:20-cv-13256 TGB-CI (the "Class Action"). GM contends that Noe failed to opt out of the class settlement, that she is therefore bound by its terms, and that the class settlement fully resolves her claims in this action. Plaintiff opposes the

motion.

GM's Request for Judicial Notice

GM's motion is supported by a declaration of counsel (Caceres Decl.) and a request for judicial notice, asking the Court to take judicial notice of (a) a September 26, 2024 order of the Michigan District Court in the Class Action granting preliminary approval of the settlement ("Preliminary Order"), which also sets the procedures and deadlines for notice to class members of the settlement, and for class members to object to the settlement and/or opt out of the settlement (RJN Exh. A), (b) a document Caceres declares is an "Exclusion Report" which he states was in the Class Action on May 23, 2025, and which he indicates is a list of class members who opted out of the settlement, and (c) a December 22, 2025 order of the Michigan District Court granting final approval of the settlement ("Final Order"). Exhibit C to the Caceres Declaration, however, is not a copy of the December 22, 2025 Final Order but instead another copy of the Preliminary Order. The Court **denies** the request for judicial notice of the Final Order not attached to the pleadings.

The Court **grants** GM's request for judicial notice of the Preliminary Order (Carceres Exh. A) subject to the applicable limitations on the nature and scope of judicial notice under the case law. (Evid. Code § 452(d); *Aixtron, Inc. v. Veeco Instruments Inc.* (2020) 52 Cal. App. 5th 360, 382, superseded on other grounds as stated in *Vo v. Technology Credit Union* (2025) 108 Cal.App.5th 632; *Shine v. Williams Sonoma Inc.* (2018) 23 Cal.App.5th 1070, 1076-1077 [judicial notice of prior judgment for ruling on demurrer]; *Kilroy v. State of California* (2004) 119 Cal.App.4th 140, 148 ["[E]ven though a factual finding in a prior judicial decision may not establish the truth of that fact for purposes of judicial notice, the finding itself may be a proper subject of judicial notice if it has a res judicata or collateral estoppel effect in a subsequent action."].) The Court cannot take judicial notice of the Final Order without having a copy of the Final Order and without proof a copy of the Final Order was served on Plaintiff's counsel with GM's request for judicial notice. It appears from the filing that a copy was not so served.

The Court **denies** GM's request for judicial notice of the Exclusion Report (Caceres Exh. B), as GM asks the Court to take judicial notice of the truth of the

contents of that report; namely, that Plaintiff in this case failed to opt out of the proposed class settlement. (*Aixtron, Inc., supra*, 52 Cal.App.5th at 382 [court " 'cannot take judicial notice of the truth of hearsay statements in decisions or court files, including pleadings, affidavits, testimony, or statements of fact.' [Citation omitted.]"]; *StorMedia, Inc. v. Superior Court* (1999) 20 Cal.4th 449, 457, fn. 9 [court takes judicial notice of the existence of a filed pleading but not the truth or interpretation of the contents to the extent reasonably disputable].) The Court could, **at most**, take judicial notice of the fact the list titled "Exclusion Report" was filed in the Class Action, but the Court **declines** to do so. The face of the document **does not bear any indication that the document was in fact filed with the Michigan District Court in the Class Action**. In particular, unlike the Preliminary Order, there is no filing information located at the top of the Exclusion Report showing the case number, filing date, and other filing information, such as the ECF number of the filing. Further, the mere fact the Exclusion Report was filed is irrelevant to the determination of the motion to dismiss; its sole relevance is that GM claims the contents show the fact Plaintiff failed to opt out. (*Jordache Enterprises, Inc. v. Brobeck, Phleger & Harrison* (1998) 18 Cal.4th 739, 748, fn. 6 [judicial notice denied where "the requests present no issue for which judicial notice of these items is necessary, helpful, or relevant"].)

Issues Regarding the Timeliness of the Opposition and Reply

GM asserts in its reply that the opposition was untimely because it was filed on March 30, 2026, and the hearing date on the motion was set for April 3, 2026. The Court's records in Odyssey reflect the motion was assigned the April 10, 2026 hearing date when it was filed in February, and the Court has no record that the motion was ever set to be heard on April 3. There was a court holiday on March 31, 2026, which meant that the opposition was due nine court days before April 10, 2026, which was March 27, 2026, making the opposition one court day late. (Code Civ. Proc. § 1005(b).) However, GM's reply was due five court days before the hearing on April 3, 2026 and was also filed one court day late on April 6, 2026. (*Id.*) The Court has considered both the opposition and the reply in rendering this ruling.

Motion to Dismiss and Analysis

GM cites the doctrines of *res judicata* and collateral estoppel to support its motion to dismiss the action with prejudice. GM's motion does not identify any

statute or the procedural basis on which it brings the motion.

A. Collateral Estoppel and Res Judicata Principles

The *res judicata* doctrine has two distinct aspects with different elements, claim preclusion and issue preclusion, and it was not clear which aspect CCCERA contends applies. (*DKN Holdings, LLC v. Faeber* (2015) 61 Cal.4th 813, 824 [noting courts sometimes use *res judicata* "with imprecision"].) "Claim preclusion 'prevents relitigation of the same cause of action in a second suit between the same parties or parties in privity with them.' [Citation omitted.] Claim preclusion arises if a second suit involves (1) the same cause of action (2) between the same parties (3) after a final judgment on the merits in the first suit. [Citations omitted.] If claim preclusion is established, it operates to bar relitigation of the claim altogether." (*Id.* at 824 [emphasis added].) The claim preclusion aspect of *res judicata* prevents piecemeal litigation by splitting a single cause of action or relitigation of the same cause of action on a different legal theory or for different relief. (*Mycogen Corp. v. Monsanto Co.* (2002) 28 Cal.4th 888, 897.)

"Issue preclusion differs from claim preclusion in two ways. First, issue preclusion does not bar entire causes of action. Instead, it prevents relitigation of previously decided issues. Second, unlike claim preclusion, issue preclusion can be raised by one who was not a party or privity in the first suit. [Citations omitted.] In summary, issue preclusion applies (1) after final adjudication (2) of an identical issue (3) actually litigated and necessarily decided in the first suit and (4) asserted against one who was a party in the first suit or one in privity with that party. [Citations omitted.]" (*DKN Holdings, LLC, supra*, 61 Cal.4th at 824-825 [emphasis added, citing, among others, *Lucido v. Superior Court* (1990) 51 Cal.3d 335, 342-343].) The Court can decline to apply collateral estoppel where public policy dictates a different result. (*See Lucido, supra*, 51 Cal.3d at 342-343.)

The Court in *McCubbrey v. Boise Cascade Home and Land Corp.* (N.D. Cal. 1976) 71 F.R.D. 62 cited by Plaintiff in her opposition recognizes the principles of *res judicata* apply to a final order approving a class action settlement. (*Id.* at 72-74.) The Court held that it had jurisdiction over members of the class who were served by mail and who are within the class certified by the Court in the action,

and the Court rejected the argument that the fact a class member allegedly did not receive the notice relieved the member of the *res judicata* effect of the final order approving the class settlement. (*Id.*) Though that decision is not binding on the Court in this case, the Court addresses the decision given Plaintiff's reliance on it, and the fact the case is at least persuasive authority on the issues regarding class certification, notice, and opt out in a class settlement approved by in federal court.

B. Procedural Issues Regarding the Motion and Inadequacy of Proof to Support Dismissal

GM does not cite any provision of the Code of Civil Procedure or California Rule of Court under which its motion to dismiss is brought.

1. Possible Statutory Bases for the Motion

Code of Civil Procedure § 581 authorizes the Court to dismiss an action, but the circumstances in which dismissal is authorized under that statute are not present here.

Plaintiff cites the decision *Rheinhardt v. Nissan North America, LLC* (2023) 92 Cal.App.5th 1016, which addressed the validity of a settlement agreement and waiver of a vehicle lessee's remedy for repurchase or replacement of a defective vehicle. The Court notes that Nissan sought to establish its right to dismissal of the plaintiff's post-settlement Song-Beverly Act action in that case by a motion for summary judgment, an evidentiary motion. Motions for summary judgment have extensive requirements not met by the current motion, including the requirement that the motion be supported by a separate statement of material facts and that the opposing party be given at least 81 days' notice of the motion, extended based on the manner of service. (Code Civ. Proc. §§ 437c(a)(2) and 437c(b)(1).)

The motion could be interpreted as a motion for judgment on the pleadings under Code of Civil Procedure § 438. A motion for judgment on the pleadings may be granted in favor of a defendant where the court lacks jurisdiction over the subject of the cause of action or the action as a whole or if the complaint in its entirety or a particular cause of action fails to state facts sufficient to state a cause of action. (Code Civ. Proc. §§ 438(c)(1)(B) [motion by a party] and

438(c)(3)(B) [court's own motion].) A motion for judgment on the pleadings is generally treated like a demurrer. (*Stoops v. Abbassi* (2002) 100 Cal.App.4th 644, 650 ["Such motion may be made on the same ground as those supporting a general demurrer, i.e., that the pleading at issue fails to state facts sufficient to constitute a legally cognizable claim or defense. [Citation omitted.]").) (See also *Connerly v. Schwarzenegger* (2007) 146 Cal.App.4th 739, 746 [" 'A motion for judgment on the pleadings is the equivalent of a demurrer made after the pleadings are in.' [Citation omitted.]"].)

"[I]t is well established a trial court may take notice of an earlier judgment in deciding whether to sustain a demurrer on res judicata grounds." (*Kirkpatrick v. City of Oceanside* (1991) 232 Cal.App.3d 267, 281 [citing *Carroll v. Puritan Leasing Co.* (1978) 77 Cal.App.3d 481, 486].) "The court may sustain a demurrer on claim preclusion grounds '[i]f all of the facts necessary to show that the action is barred are within the complaint or subject to judicial notice' [Citation omitted.]" (*Thompson v. Ioane* (2017) 11 Cal.App.5th 1180, 1190-1191 [quoting *Carroll v. Puritan Leasing Co.*, *supra*, 77 Cal.App.3d at 485].)

2. Improper and Lack of Sufficient Basis for Motion for Judgment on the Pleadings

GM contends that both aspects of the res judicata doctrine bar Plaintiff's continued litigation of her claims based on the settlement in the Class Action. Plaintiff contends the motion is improper as a motion for judgment on the pleadings because GM did not raise *res judicata* or collateral estoppel as an affirmative defense in its answer.

The lack of such an affirmative defense in the answer does not preclude the Court from granting judgment on the pleadings, because in ruling on a motion for judgment on the pleadings by a defendant, like a demurrer, the Court considers only the pleading being challenged and matters subject to judicial notice, including judgments or orders that may show the claim is barred by *res judicata* or collateral estoppel. (*Hughes v. Western MacArthur Co.* (1987) 192 Cal.App.3d 951, 957-958 ["[O]n a motion for judgment on the pleadings, the complaint cannot be attacked by reference to matters set forth in the answer. [Citations omitted.] Viewing the complaint in isolation, we must determine whether it states a cause of action. [Citation omitted.]"].) The Court does not

reach Plaintiff's arguments regarding GM's alleged waiver of *res judicata* or collateral estoppel defenses for failure to assert them in its answer to the 2AC filed in December 2025.

Plaintiff also contends, however, GM's motion is dependent upon extrinsic evidence outside the scope of the allegations of the 2AC and matters outside the proper scope of judicial notice. Plaintiff contends GM cannot demonstrate a sufficient basis to dismiss the action without such extrinsic evidence. The Court agrees.

The Preliminary Order provides the Court with evidence subject to judicial notice that the Michigan District Court certified a class of Chevrolet Bolt vehicle owners and lessees which encompassed Plaintiff based on her allegations in the 2AC. The Preliminary Order defines the class subject to the Class Action settlement to include persons who purchased or leased a 2019 model year Chevrolet Bolt "who have not received a buyback of their vehicle" from GM or a GM authorized dealer. (Caceres Decl. Exh. A p. 3, ¶ 7.) Plaintiff does not argue that she does not meet the criteria for being a member of the class certified by the Michigan District Court. The Class Action based on its case number was filed before Plaintiff's case was filed in this Court and thus is a "prior" action. Plaintiff does not contest that her claims regarding the Battery Defect in the Vehicle is the same type of defect subject to the claims in the Class Action. There appears to be no dispute, based on the time of filing of the Preliminary Order, that Plaintiff instituted her lawsuit before the notice of the proposed class settlement was issued and served on class members.

GM contends the settlement resulted in a "final judgment on the merits" based on the entry of the Final Order approving the class settlement. The Court does not have that evidence before it on the current state of the record as the Final Judgment is not attached to the RJN or the Caceres Declaration.

Plaintiff mischaracterizes the holding in *McCubbery, supra*, asserting that the case stands for the proposition that "**an individual filing suit prior to any class action settlement notice, and prior to the end of the exclusionary period, is not bound by the class adjudication.**" (Opp. p. 1, citing *McCubbery, supra*, 71 F.R.D. at 67 [bold in original].) (See also Opp., Argument 3, p. 3 ["Plaintiff Filing Suit Prior to the Date of the Class Action Settlement Effects Opt-Out"].) The

McCubrey case does not stand for those general propositions.

Rather, the Court explained: "Four of the respondents sought to be enjoined on the present motion had instituted suits against Boise Cascade prior to receipt of the Notice detailing the proposed settlement of the class suit. The issue raised by this aspect of Boise Cascade's petition is whether the *McCubrey* notice adequately advised this group of respondents of their options under the contemplated settlement and the consequences of their alternative actions."

(*Id.* [emphasis added].) The Court did not make a general holding that members of a class subject to a class action settlement who filed individual suits before the class settlement notice is served are not bound by the settlement. Rather, the Court evaluated the specific contents of the notice of the class action settlement that was sent to the class members who had filed individual suits before the class settlement notice was served to determine if the settlement notice met due process standards under the U.S. Supreme Court decision in *Mullane v. Hanover Bank & Trust Co.* (1950) 339 U.S. 306, 314. (*Id.* at 67.)

The Court in *McCubrey* evaluated whether the class settlement notice explained to those members "the options available to class members and the consequences of their elections" in a manner "detailed with sufficient clarity to afford absent members a realistic opportunity to evaluate alternative options available to them." (*Id.*) The Court held:

In the present case, the Notice of the proposed settlement of the *McCubrey* suit satisfied due process criteria as to the vast majority of class members; however, as to the small group of individuals engaged in ongoing litigation against Boise Cascade, we must conclude that the Notice failed to perform its function of providing an adequate basis for informed decisionmaking. Nothing in the detailed, 29-page Notice would alert even a careful reader that he must satisfy the exclusion requirements or suffer the consequence of permitting his ongoing litigation to evaporate. The language of Option 1 (which respondents "elected" by failing to exclude themselves

from the class) suggests that inaction will result in barring future litigation, not automatic termination of present suits. Nor does the language of Option 2 (specifying the opt-out procedure) advise class members that they must satisfy exclusion requirements to maintain the viability of independent litigation. From these serious omissions, we are compelled to conclude that the Notice did not provide respondents engaged in separate suits against Boise Cascade with adequate notice of their options under the proposed *McCubbre*y settlement.

(*Id.* at 67-68 [emphasis added].) The holding in the case was not that any individual who files suit before a class settlement notice was served is not bound to the class settlement. Rather, the implicit holding was that such an individual would be bound if the individual was given proper and sufficient notice consistent with due process regarding the effect of the settlement on their action and the consequences of failing to opt out. The Court in *McCubbre*y merely concluded the notice served in that case did not adequately advise the ten individuals who had suits pending when the class settlement notice was issued of the effect of the class settlement and the consequences that would result for their individual actions if they did not opt out of the settlement. For that reason, the Court concluded they were not bound to the class settlement even though they did not opt out. (*Id.* at 68-69.)

The Court's additional holding in *McCubbre*y that, as to three individuals who filed suit after the class settlement notice was served but before the end of the exclusionary period, those individuals had adequately indicated an intent to opt out of the class settlement despite the failure to follow the specific opt out procedures in the notice has no bearing here. Plaintiff in this case had filed her lawsuit long before the class settlement notice was served. (*Id.* at 69-72.) The Court did not hold that filing suit before the class settlement notice effects an opt out. (*Id.* at 69-72.) To the contrary, the Court's analysis indicates that as to a plaintiff who filed suit before the class settlement occurred and before the class settlement notice was given, the settlement would be binding on that party (1)

if the notice of the class settlement provided adequate information regarding the settlement and the consequences of not opting out on that party's pending suit, and (2) the party failed to take the required steps to opt out. (*Id.* at 67-69, 72-74.) The Court's holding as to the third group of class members in *McCubbery*, those who filed suit after the end of the exclusionary period for opting out of the class settlement, is not relevant here for the same reason. (*Id.* at 72.)

Nevertheless, the record on this motion, even if interpreted as a motion for judgment on the pleadings, is inadequate to grant GM's motion. The Preliminary Order does not include a copy of the notice of the class settlement that was to be served on class members, demonstrating it met due process standards to advise Plaintiff of the consequences of the settlement on her pending litigation. The Court has no evidence from a competent declarant proving the fact of, and method and manner of, service of the class settlement notice on Plaintiff and/or her counsel, nor could the Court consider that evidentiary showing on a motion for judgment on the pleadings as such evidence would not be within the proper scope of judicial notice. The Court does not have documents subject to judicial notice that Plaintiff failed to opt out of the class settlement. The inadequacy of the record and procedural limitations on a motion for judgment on the pleadings mean that GM's motion to dismiss must be **denied** on these grounds.

C. *Rheinhart* and Unwaivable Remedies under the Song-Beverly Act

Plaintiff also argues that the class action settlement is void and unenforceable to the extent it forces Plaintiff to waive her unwaivable rights to the repurchase or replacement remedies under the Song-Beverly Act or other unwaivable remedies under the statute based on *Rheinhart v. Nissan North America, Inc.* (2023) 92 Cal.App.5th 1016, 1027.) The Court in *Rheinhart* held that on the summary judgment record before the Court, "the Release contravened Rheinhart's right to elect the [Song-Beverly] Act's substantive remedies of replacement or restitution. On that basis, it is void as against public policy, and Nissan is not entitled to summary judgment on grounds the release bars Rheinhart's claims as a matter of law." (*Id.* at 1036.) The Court nevertheless "emphasize[d] that [its] holding is not that section 1790.1 precludes settlement

and release of claims under the Act." (*Id.*) The Court also stated it "did not disagree" with other decisions that have stated a vehicle buyer is not prevented from settling for less than the full purchase price of the vehicle or that Civil Code § 1790.1 means that no settlement of Song-Beverly Act claims is enforceable. (*Id.*)

The Court does not have before it the class settlement agreement. The Court cannot infer the terms of the settlement or how it applies to Plaintiff here, and what remedies, if any, Plaintiff is required to waive under the Song-Beverly Act pursuant to the class settlement assuming she did not opt out of the settlement after service of a notice of class action settlement that meets due process standards. The Preliminary Order refers to the establishment of a qualified settlement fund, but without the terms of the settlement and evidence of its effect on Plaintiff's claims, the Court cannot determine whether or not the class settlement effects a void or unenforceable waiver of Plaintiff's unwaivable rights under the Song-Beverly Act. The Court therefore does not reach the merits of Plaintiff's arguments regarding *Rheinhardt* and the underlying class settlement.

4. 9:00 AM CASE NUMBER: C23-01219
CASE NAME: ELVECIO MACHADO VS. GINO CARUSO
*HEARING ON MOTION IN RE: LEAVE TO FILE 1ST AMENDED COMPLAINT
FILED BY: MACHADO, ELVECIO
TENTATIVE RULING:

Before the Court is Plaintiff Elvecio Machado and Plaintiff Tatiana Arambulo (collectively, "Plaintiffs")'s motion for leave to file First Amended Complaint. The motion is opposed by Defendant Gino Caruso and Defendant Laudelino Caruso (collectively, "Defendants"). Defendants are in pro per.

Plaintiffs seek to substitute Cars To Go, Inc. for Doe Defendant No. 1 as well as add two new causes of action for Intentional Interference with Contractual Relations and Common Law Trademark Infringement against Cars To Go, Inc and existing Defendants Laudelino Caruso and Gino Caruso.

For the following reasons, the motion is **granted**. The First Amended Complaint is deemed filed as of April 10, 2026. Plaintiff is directed to file a new copy of the